

Stereo. HC JD A 38.
Judgment Sheet
**IN THE LAHORE HIGH COURT
MULTAN BENCH MULTAN**

JUDICIAL DEPARTMENT

Crl. Revision No. 245-2018

Muhammad Safdar alias Bhooma Vs. The State and another.

(JUDGMENT).

Date of hearing: **31.10.2019**

Petitioner by: Mian Arshad Waqas Chajra, Advocate.

Respondent No.2 by: Malik Naseer Ahmad Thaheem, Advocate.

State by: Mr. Muhammad Ali Shahab, Deputy Prosecutor General.

SADIQ MAHMUD KHURRAM, J. Through the instant criminal revision Muhammad Safdar alias Bhooma, the petitioner, has challenged the vires of the order dated 29.05.2018 passed by the learned Additional Sessions Judge Multan whereby an application, filed by the petitioner seeking re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination, was dismissed.

2. Learned counsel for the petitioner submits that the order dated 29.05.2018 passed by the learned Additional Sessions Judge Multan whereby an application, filed by the petitioner seeking re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination, was dismissed is against the law and facts. The learned counsel for the petitioner further submitted that re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination was essential for the just decision of the case. The learned counsel for the petitioner further submitted that refusing the re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination would result in serious prejudice to the petitioner who was facing trial of the case.

3. Learned Deputy Prosecutor General appearing on behalf of the State and the learned counsel appearing on behalf of the respondent No.2 have submitted that Dr. Abdul Rehman Nasir (PW-1) was examined during the trial and the learned counsel appearing on behalf of the petitioner had duly cross-examined him hence

no reason existed for re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination. They further submitted that the learned trial court had held in its order dated 29.05.2018 that the application seeking re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination was filed to cause delay in the conclusion of the trial.

4. I have heard the learned counsel for the petitioner as well as learned Deputy Prosecutor General appearing for the State and the learned counsel appearing on behalf of respondent No.2 and have perused the record with their able assistance.

5. As per record Dr. Abdul Rehman Nasir was examined as (PW-1) and got recorded his examination-in-chief on 07.02.2018 and he was cross-examined on 15.02.2018 by the learned defence counsel on behalf of the petitioner (accused facing trial before the learned trial court). The application seeking re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination, was filed on 15.03.2018 and was dismissed on 29.05.2018. The only reason for filing of the said application was that subsequent to the earlier cross-examination of Dr. Abdul Rehman Nasir (PW-1), the petitioner appointed a new counsel. I have perused the copy of the application filed by the petitioner seeking re-summoning of Dr. Abdul Rehman Nasir (PW-1). A perusal of the same reveals that not a single ground has been mentioned necessitating the re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination. In the application, the petitioner failed to mention that the re-summoning of Dr. Abdul Rehman Nasir (PW-1) for further cross-examination was essential for the just decision of the case. The petitioner also failed to claim in the said application that the failure to further cross-examine Dr. Abdul Rehman Nasir (PW-1) would result in failure of justice and cause prejudice to the petitioner. The petition filed on behalf of the petitioner is vague and it has not been explained on what points Dr. Abdul Rehman Nasir (PW-1) was not cross-examined. Witnesses can only be recalled for examination in exceptional cases where interest of justice so demands to rectify an obvious mistake. On perusal of the record, it has transpired that Dr. Abdul Rehman Nasir was examined as (PW-1) and got recorded his examination-in-chief on 07.02.2018 and he was cross-examined on 15.02.2018 by the learned defence counsel on behalf of the petitioner. The petitioner has also failed to satisfy this Court that further cross-examination of Dr. Abdul Rehman Nasir (PW-1) was necessary for the just decision of the case. No prosecution witness can be summoned for further cross-examination just to fill in the lacuna by any party. If this is allowed, trials will never come to an end.

6. Learned trial Court has certainly been vested with adequate powers under section 540, Cr.P.C. to summon and examine or re-summon and re-examine any witness in the trial before pronouncing the final verdict, but said provisions of the Code did not ingrain any such interpretation whereby it should be allowed to be used by a party to fill-in the lacunae of its case or to unnecessarily protract proceedings of the trial to defeat the ends of justice. This is what the learned trial Court has kept in view while dealing with the application of the petitioner . There was no occasion for the learned trial court to have thought in terms, otherwise. The impugned order has been passed strictly in accordance with the requirement of the law and it did not lack any virtue of a legal order. The witness to be re-called for cross-examination has already been examined and refusal to respondents-summon him will not amount to miscarriage of justice in any way. In this case the whole evidence has been recorded as contemplated under law and all the prosecution witnesses have been examined and fully cross-examined. This Court is not inclined to allow this revision application simply on the ground that a new counsel entered the case belatedly after recording of the prosecution evidence and wants that prosecution witnesses should be recalled so that he should cross-examined them again in accordance with his own line of defence prepared by him. Accused cannot claim as a matter of right to recall witnesses for cross-examination whenever he desires, particularly, when opportunity was afforded to him for cross-examination .The case is fixed for final arguments. No illegality has been pointed out in the order impugned. The revisional jurisdiction of this Court can be exercised only when there are exceptional circumstances and the order impugned is perverse or suffering from any type of infirmity.

7. As reiterated above, this Criminal revision being devoid of merits, is **dismissed** and the order dated 29.05.2018, passed by the learned Additional Sessions Judge, Multan is upheld.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for Reporting

Judge